

Smt. Lajja Devi v. U.P. Power Corporation And Another

High Court of Judicature at Allahabad · Division Bench · 22 December 2015 · Writ - C No. 39239 of 2009 · **Writ dismissed as infructuous; liberty to apply within 30 days.**

HEADNOTE

Writ seeking quashing of a 2009 consumption bill dismissed as infructuous after none appeared and no interim order had been passed. Earlier, while granting time for a counter affidavit, the Court left it open to the consumer to represent against the bill dated 03.06.2009 before the competent authority in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Lajja Devi sought quashing of a U.P. Power Corporation consumption bill dated 3 June 2009. On 12 August 2009 the Court allowed the respondents three weeks to file a counter affidavit and recorded that the petitioner could represent against the bill before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. No interim order was passed. In 2015 the petition was listed among cases likely to be infructuous; none appeared for the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

consumption-bill-representation

HOLDING

A consumer challenging a consumption bill by writ may represent against that bill before the competent authority in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005; the Court left that course open while the writ remained pending. The petition was later dismissed as infructuous, without deciding the bill, when none appeared after several years and no interim order had been passed. ¶ 12.8.2009, 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CONSUMPTION BILL DATED 03.06.2009

Writ dismissed as infructuous without examining the bill; liberty to apply within 30 days if the matter still survived. ¶ 4-7